

WPVC Agreement:

This agreement (the "Agreement") is between Winter Park Volleyball Academy, LLC, doing business as Winter Park Volleyball Club (hereinafter "WPVC", the "Club" or "We") and the undersigned (hereinafter "I", "You", "Your" or words of similar import).

Dues and Fees

I understand that I am responsible for all Club Fees due for the player (the total of which depends on the Team Level to which Your player is assigned and is set forth on the Team Level Page). The balance of the Club Fees after the deposit paid today will be automatically charged by credit card or ACH in monthly payments described on the Team Level Page. Your Club Fees include but are not limited to:

- Training and coaching
- Tournament entry fees (Does not include Junior Olympics)
- Administrative fees, facility rental and office expenses
- Coaches' salaries, travel, and lodging expenses
- Strength & Conditioning for Armour teams (12 & up)

At the time of tryouts, I understand and agree that a **NONREFUNDABLE** deposit in the amount of \$500.00 (the "Deposit") is due to and fully earned by the Club. The Deposit is applied toward the Club Fees.

Additional Cost

- Team Ball & Mesh Clip-on Ball Bag -- (\$75 Armour & Elite) and (\$50 Central); Tournament ball & travel bag are for the player to use for home practice and bring to every tournament; billed 8/1/2025. Fee waived if player still has age-appropriate ball and bag from prior season.
- Uniform Fee -- Armour (\$399), Elite (\$350), Central (\$255); billed 8/1/2025.
- Media Fee -- Venue streaming service for practices/in-house tournaments. Armour, Elite, and Central \$25; billed 8/1/2025
- \$350 Player fee if team qualifies for USAV Nationals or plays an additional out of state qualifier/tournament (e.g.: Triple Crown)
- 4% Fee if using a credit card for payment.

Financial Agreement

Club Fees may be paid in full or on a monthly payment schedule. All Club Fees paid by credit card will incur a 4% fee; in order to avoid this fee, a check must be delivered to the Club prior to the due date. **There are no refunds for the deposit. Deposit must be paid before any other fees.** Failure to pay Club Fees, including the deposit, will result in removal from the team. Past due payments (all payments are considered late after 5 days from the due date) will incur a \$50 late fee and if payments become more than 45 days late the account will be referred to a collection agency and You will be responsible to pay all costs of collection, including but not limited to collection fees charged by any third party, costs incurred to collect on the account, and attorneys' fees (including those incurred for collection activities, pre-litigation, during litigation and any appellate proceedings)

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incurred by the Club. In the event the method of payment chosen for the Deposit of any monthly payment should fail or later be disputed, you understand that such will not affect the binding nature of this Agreement and agree to make payment of the total amount due by another method. If Club Fees are being paid on a monthly payment plan, WPVC is entitled to receive the entire balance due on each specified due date. Sibling discounts are offered, and the discount is deducted from the lower of the siblings' dues. If You have received a financial hardship scholarship, any discount provided will be owed to the Club if player leaves the team or the conditions of the hardship scholarship are not honored per the separate scholarship agreement. WPVC reserves the right to move players between teams when necessary.

Credit Reporting

Consumer Credit Report Authorization: By signing this document I authorize and instruct the Club to obtain, review, and use my consumer credit report from any consumer reporting agency ("CRA") of its choice. I also authorize the release to CRAs of financial or other information that I have supplied to the Club in connection with this transaction. Any such CRA is authorized to use a copy of this form to obtain any information the CRA deems necessary to complete my consumer credit report. I understand that I may revoke my consent to these disclosures by notifying the Club in writing. I understand and agree that the Club or a third-party collection agency may furnish negative information to CRAs in the event my account becomes delinquent.

Refund Requests

Playing Club volleyball is a commitment that should not be taken lightly. You have weighed the financial and time commitments, and You understand that by committing to a team, you are taking an opportunity away from another player and the Club. Therefore, when You make this commitment, you are making a commitment to pay the entire season's dues and a time commitment for the entire season. Fees paid to WPVC are **non-refundable**, however, should a player have a season-ending injury or relocation 100 or more miles away from Central Florida after Agreement is signed, refunds (in the event of pre-paying dues) or future payments may be, but not guaranteed to be, forgiven. To be considered for a refund or release from future payment obligations, you must provide a written request to the Director within ten (10) days of the injury or learning of the relocation, which written request must be accompanied by supporting documentation, including, but not limited to, a physician's report. Any season ending reasons must include all volleyball (school teams included). **The deposit, uniform fee, and ball fee, however, are never refundable under any circumstance, with NO EXCEPTIONS.** In the event any refund is provided (not on the initial deposit, uniform or ball fee, as explained above) Club Fees will be prorated with the exception of monies already spent (i.e., tournament entry fees, uniforms, etc.) **NO REFUNDS will be granted after December 1st of the current season.**

Missing Tournaments

If a player misses Qualifiers or Nationals, there will be a \$100 a day fee for missing unless given approval at the first practice. Exceptional cases will be reviewed by directors.

Stay and Play

Players are required to stay at a designated Stay and Play hotel when directed by the tournament. Any player that does not stay in a designated hotel will be billed a \$100 a day fee for noncompliance. Any fees incurred by the club for noncompliance will be assessed to the player's account.

Covid Refund Policy

With the uncertainty of Covid and its effects on the volleyball season, the Club will make every reasonable effort to provide a safe environment for Your player to get as much out the season as possible. If due to Covid

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or similar type outbreak, natural disaster, or act of God, the Club is required to temporarily close or if any tournaments are cancelled, we will do our best to reschedule tournaments and provide additional training to compensate for any time lost. If the season is cancelled in its entirety, Club Fees will be adjusted based on any savings the Club recovers in tournament entry fees, travel cost, coaches' salaries, etc.

Rules and/or Regulations

If You fail to observe the Club's rules and regulations, as set forth in the Handbook or as established by Us from time to time, we may take such actions as set forth in the Handbook. Not all rules and regulations are listed in the Handbook and We reserve the right to add, change or remove rules, conditions of participating in Club play, opening and closing hours, and all services and facilities We offer.

Miscellaneous

This Agreement constitutes the entire understanding and agreement between You and the Club, and supersedes all prior written and contemporaneous oral agreements, understandings, inducements, and conditions, express or implied, among or between You and the Club. The express terms of this Agreement control and supersede any course of performance or usage of trade inconsistent with any terms hereof. In the event of any litigation brought to enforce the terms of this Agreement, the prevailing party in such litigation shall recover from the other party its reasonable attorneys' fees and costs incurred, including those incurred pre-suit, at the trial level and all appellate levels.

WAIVER OF JURY TRIAL.

THE PARTIES HERETO KNOWINGLY, VOLUNTARILY, INTENTIONALLY AND IRREVOCABLY WAIVE ANY AND ALL RIGHT TO A TRIAL BY JURY IN ANY ACTION OR PROCEEDING TO ENFORCE OR DEFEND OR CLARIFY ANY RIGHT, POWER, REMEDY OR DEFENSE ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE TRANSACTION CONTEMPLATED HEREIN, WHETHER SOUNDING IN TORT OR CONTRACT OR OTHERWISE, OR WITH RESPECT TO ANY COURSE OF CONDUCT, COURSE OF DEALING, STATEMENTS(WHETHER ORAL OR WRITTEN) OR ACTIONS OF ANY PARTY; AND EACH AGREES THAT ANY SUCH ACTION OR PROCEEDING SHALL BE TRIED BEFORE A JUDGE AND NOT BEFORE A JURY. EACH PARTY FURTHER WAIVES ANY RIGHT TO SEEK TO CONSOLIDATE ANY SUCH LITIGATION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER LITIGATION IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED.

Assumption of Risks, Waiver, and Release

You, on behalf of yourself and any of Your minor children that participate in events at or associated with the Club, understand the risk of injury from activities undertaken in connection with Club volleyball and Your use of the Facility and equipment located therein, is significant including the potential for permanent paralysis and death. **You KNOWINGLY AND VOLUNTARILY ASSUME ALL SUCH RISKS, both known and unknown. You hereby RELEASE, INDEMNIFY, AND HOLD HARMLESS Us, Our employees, agents, members, officers, and directors (collectively the "Releasees") WITH RESPECT TO ANY AND ALL INJURY, DISABILITY, DEATH, LOSS or DAMAGE to You or any minor child of Yours (collectively the "Releasing Parties"), or to the property of any Releasing Party, WHETHER ARISING FROM THE NEGLIGENCE of the Releasees or otherwise, that may arise out of or in connection with Your minor child's participation in Our Club events and any equipment of the Facility, whether on or off Facility**

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property, or in any way related to this Agreement. You expressly agree that this release is intended to be as broad and inclusive as permitted by the laws of the State of Florida and if a portion of this release is held invalid, the balance shall remain in full force and effect. This release shall apply to Your heirs and assigns and to any minor on whose behalf You hereby sign as parent or guardian. **You understand that the Club is relying on this release in agreeing to enter into this Agreement. YOU HAVE READ THIS RELEASE OF LIABILITY AND ASSUMPTION OF RISK CLAUSE, UNDERSTAND ITS TERMS AND THAT YOU HAVE GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING IT, AND SIGN IT FREELY AND VOLUNTARILY WITHOUT ANY INDUCEMENT.**

Miscellaneous

1. This Agreement contains the entire agreement between the parties, and supersedes any prior written or oral agreements between parties concerning the subject matter hereof. The provisions of this Agreement may be waived, altered, amended or repealed, in whole or in part, only in a writing signed by all parties.
2. You have read, and fully agrees to the terms and conditions of this Agreement and understands and agrees that by signing this Agreement (**which contains an assumption of risks, waiver, and release**) You have given up considerable future legal rights. You have signed this Agreement freely, voluntarily, under no duress or threat of duress, without inducement, promise or guarantee being communicated to You. You certify and warrant that You are 18 years of age or older and mentally competent to enter into this Agreement.
3. If any clause or provision of this Agreement shall be held invalid, illegal, void or unenforceable by a Court order or otherwise, the invalidity of such clause or provision shall not affect the validity of the remainder of this Agreement. The remaining provisions of this Agreement will continue to be fully enforceable in accordance with the terms hereof.
4. In the event of any litigation brought to enforce the terms of this Agreement, the prevailing party in such action shall recover from the other party its reasonable attorneys' fees and costs incurred in such litigation, including those incurred at any trial or appellate level.
5. **WAIVER OF JURY TRIAL. THE PARTIES HERETO KNOWINGLY, VOLUNTARILY INTENTIONALLY AND IRREVOCABLY WAIVE ANY AND ALL RIGHT TO A TRIAL BY JURY IN ANY ACTION OR PROCEEDING TO ENFORCE OR DEFEND OR CLARIFY ANY RIGHT, POWER, REMEDY OR DEFENSE ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE TRANSACTION CONTEMPLATED HEREIN, WHETHER SOUNDING IN TORT OR CONTRACT OR OTHERWISE, OR WITH RESPECT TO ANY COURSE OF CONDUCT, COURSE OF DEALING, STATEMENTS (WHETHER ORAL OR WRITTEN) OR ACTIONS OF ANY PARTY; AND EACH AGREES THAT ANY SUCH ACTION OR PROCEEDING SHALL BE TRIED BEFORE A JUDGE AND NOT BEFORE A JURY. EACH PARTY FURTHER WAIVES ANY RIGHT TO SEEK TO CONSOLIDATE ANY SUCH LITIGATION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER LITIGATION IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED.**

Handbook

By signing you agree to the above terms as well as acknowledge that You have received, read and agree to the terms and conditions set forth in the WPVC Handbook. You agree to abide by the terms, conditions, and policies set forth in the Handbook, to have Your child read and adhere to the Handbook, and that the terms, conditions, and policies set forth in the Handbook are incorporated herein by this reference. In the case of any discrepancy between the terms of this Agreement and the Handbook, this Agreement shall prevail. You also

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agree that You are the parent or guardian of the child who will be participating in Club volleyball through this Agreement.

Electronic Signature

You agree that this Agreement and any other documents to be delivered in connection herewith may be electronically signed, and that any electronic signatures appearing on this Agreement or such other documents are the same as handwritten signatures for the purposes of validity, enforceability, and admissibility.

Team Levels

The Girls Armour Program 12U-17U (10 payments of \$515) 18U (8 payment of \$515) 10U & 11U (10 payments of \$399):

This program is for players who have a strong desire to play volleyball in college. The player must be fully committed to making volleyball the number one priority over other activities. The players on our Armour teams will travel out of state to National Qualifiers where they will compete against the top teams in the country. The players on these teams must commit to attend all Travel Tournaments, Qualifiers, and National Tournaments. Team schedules will vary depending on team levels and tournament selection.

- Up to 3 2-hour Practices per week, 8-month season (10U & 11U 2 Practices per week, 1-2 additional trainings per month)
- 5-6 Travel Tournaments, 5-6 Local Tournaments
- 2 - 45-minute Strength & Conditioning sessions per week (ages 12 & above)
- Each team will have a Head Coach and Assistant Coach
- Team schedules will vary based on team levels and tournament selection based on each team's appropriate level.
- Playing Time -- There is no guarantee; Armour teams are very competitive and play time will be based on putting the team in the best position to win.
- SportsRecruit account included (1st Year Only) for those that Commit at Initial Tryout. \$200 after initial (\$400 Value)
- Your player is required to attend all Qualifiers, out of state tournaments and Nationals. Missing these tournaments will result in fines.
- 18U teams will finish their season in April. Option to extend season through AAU Nationals in June.

The Girls Elite Program 12U-17U (10 payments of \$399) 18U (8 payments of \$399) 10U & 11U (10 payments of \$300):

This program is designed for the player who may also have an interest in playing volleyball in college. The player must be willing to make the sacrifices necessary for their progress and that of the team. While not quite as intense as the Armour Program, these teams are still very competitive and will compete in high level tournaments. The players on these teams must commit to attend all travel tournaments and National tournaments as scheduled.

- 2 Practices per week, 1-2 additional trainings per month, 8-month season
- 2-3 Travel Tournaments, 6-7 Local Tournaments
- Each team will have a Head Coach and share an Assistant Coach
- Playing Time -- There is no guarantee, however Elite teams are slightly less competitive than Armour and

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coaches work to make sure everyone has an opportunity to play.

- SportsRecruit account recommended for 15U & older looking to play in college. WPVC Discount of \$200 (\$400 Value).
- Your player is required to attend all Qualifiers, out-of-state tournaments and AAU Nationals. Missing these tournaments will result in fines.
- 18U teams will finish their season in April. Option to extend season through AAU Nationals in June.

The Girls Central Program 12U & Up (8 payments of \$330) 10U & 11U (8 payments of \$200):

The central program is designed as developmental for the player who may also have an interest in playing volleyball at a higher level but isn't ready for the intense commitment.

- 2 Practices per week, 7-month season
- 1-2 In-State Travel Tournaments, 7 Local Tournaments
- Play Time -- As a developmental team, coaches will make sure all players will rotate in on a regular basis within their specific position.
- Option to extend season through AAU Nationals in June in Orlando for \$500.

Additional Costs:

- Travel expenses (hotel, airfare, etc.) for away tournaments is the responsibility of the player/parent.
- Team Ball & Bag -- (\$75 Armour & Elite) and (\$50 Central); billed August 1st.
- Uniform Fee -- Armour (\$399), Elite (\$350), Central (\$255); billed August 1st.
- Media Fee -- Armour, Elite, Central \$25; billed August 1st.
- \$350 Player fee if team qualifies for USAV Nationals or plays in an additional out of state qualifier/tournament (e.g.: Triple Crown) Billed on the 1st of the month after team qualifies.

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